

Olympic Congress recommendations XIII Olympic Congress –Copenhagen 2009 “The Olympic Movement in society”

*All members of the Olympic Movement should “adopt and implement a code of ethics based on the principles and rules of the IOC Code of Ethics”.
(Extract of Recommendation 42)*

WORLD TRIATHLON CODE OF ETHICS

The mission of the World Triathlon Code of Ethics is to safeguard the integrity, the reputation and the interests of all the constituencies of Triathlon including National Federations, Continental Confederations, athletes, organisers, officials, sponsors, spectators and the World Triathlon itself, to foster their harmonious collaboration, to formalise the collective commitment to the Olympic and the Paralympic ideals, and to protect the image of Triathlon from jeopardy or harm as a result of immoral or unethical activities, methods, and practices.

In order to achieve this, it is imperative that all those involved in the sport of Triathlon respect ethical principles which are essential to maintain the values, the spirit and the ideals of Triathlon and its part in the Olympic and Paralympic movements.

Accordingly, **all affiliated members and other stake holders** (physical persons) of World Triathlon, including but not limited to athletes (and their support Personnel), organisers, officials, sponsors, staff members and volunteers of World Triathlon, Continental Confederations and National Federations **undertake to respect and be bound at all times by the present Code**.

A. DIGNITY

1. Safeguarding the dignity of all participants is a fundamental requirement of Triathlon.
2. There shall be no discrimination on the basis of: race, language, gender, religion, sexual orientation, philosophical or political opinion, marital status, national or ethnic or social origin, property, birth.
3. All doping practices at all levels are strictly prohibited. The provisions against doping in the World Triathlon Anti-Doping Rules shall be scrupulously observed.
4. All forms of harassment, be they physical, professional, psychological or sexual, and any physical or mental injuries to participants, are prohibited.
5. All forms of participation in, or support for betting on the World Triathlon events, Olympic and Paralympic Games, and all forms of promotion of betting related to the World Triathlon events, Olympic Games and Paralympic Games are prohibited (see document Olympic Movement Code on the Prevention of the Manipulation of Competitions).
6. Also, in the context of betting, participants in the World Triathlon events and Olympic and Paralympic Games mustnot, by any manner whatsoever, infringe the principle of fair play, show nonsporting conduct, or attempt to influence the result of a competition in a manner contrary to sporting ethics.
7. World Triathlon stakeholders shall guarantee to the athletes, conditions of safety, well-being and medical care favorable to their physical and mental equilibrium.

B. INTEGRITY

1. Officials and staff members are prohibited from soliciting, accepting or offering, directly or indirectly, any form of personal remuneration or commission, or any hidden benefit or service of any kind, related to the organisation of Triathlon Events and which does not form part of the official negotiating process or is not stipulated in the contract with the organiser or organising Committee.
2. Only gifts of nominal value, in accordance with prevailing local custom, may be given or accepted by officials and staff members to a member of an organising committee bidding for an event, as a sign of respect or friendship. Any other gift must be passed on to the organisation of which the recipient is a member.
3. The hospitality given to volunteers, officials and staff members, and those accompanying them, by the organising committee bidding for an event must not exceed the standards applicable in the host country.
4. Conflicts of interest, whether real or perceived, are to be disclosed and avoided.
5. A stakeholder in the Sport of Triathlon should not engage in any criminal or other improper activity, either within or outside Triathlon.
6. The World Triathlon Constitution should be observed at all times as should all regulations, codes and decisions of World Triathlon
7. Even the appearance of misconduct or impropriety should be recognized as damaging to World Triathlon's reputation, and should, therefore, be avoided.

8. World Triathlon constituents must not be involved with organisations, firms or persons whose activity or reputation is inconsistent with the principles set out in the present Code.

C. GOOD GOVERNANCE AND RESOURCES

1. Triathlon organisations must be administered in a transparent and fair manner, free from bias and corruption and through open and democratic elections and processes. These organisations should always conduct their work and administration as follows:
 - a. With respect for the IOC basic universal principles of good governance, in particular transparency, democratic process, checks and balances, solidarity, responsibility and accountability;
 - b. Ensuring openness and transparency in all dealings of administration and operation;
 - c. Ensuring decisions are based, as far as is possible, on objective rather than subjective criteria;
 - d. Respecting contractual obligations and commercial-in-confidence transactions and intellectual property rights;
 - e. Acting in accordance with the fiduciary duties of an office bearer, complying with the spirit and letter of the law, and recognising both the legal and moral duties of the role;
 - f. Ensuring full, fair, accurate, and timely disclosure in reports to World Triathlon or to any other superior authority within the sport as may be required and also to relevant official authorities in the country or state of formation in full accordance with the law;
 - g. Ensuring that the personal rights of individuals are protected, respected, and safeguarded;
 - h. Ensuring the privacy of individuals (apart from what is essential information for the organisation to function);
 - i. Providing due process in disciplinary matters.
2. The resources available to Officials and staff members may be used only for World Triathlon purposes.
3. World Triathlon's income and expenditures shall be recorded in its accounts, which must be maintained in accordance with generally accepted accounting principles. An independent auditor will check these accounts, in an annual basis.
In cases where World Triathlon gives financial support to any Continental Confederation, National Federation, Organising Committee, or other person or entity:
 - a. the use of these World Triathlon resources must be clearly demonstrated in the accounts of the recipient;
 - b. the accounts of the recipient may be subjected to auditing by the Audit Risk and Integrity Committee upon reasonable notice to the recipient.
4. World Triathlon constituents recognise the significant contribution that broadcasters, sponsors, partners and other supporters of Triathlon events make to the development and prestige of World Triathlon events throughout the world. However, such support must be in a form consistent with the rules of sport and the principles defined in the World Triathlon Rules, Codes and Regulations, the Olympic Charter. They must not interfere in the running of the sport. The organisation and staging of Triathlon Events are the exclusive

responsibility of the World Triathlon and, where appropriate of the Continental Confederations, National Federations and/or Organisers recognised by the World Triathlon.

D. ELECTIONS

In the pursuit of open and democratic election processes, candidates offering themselves for election to office should observe the World Triathlon Election Rules and Procedures.

E. BIDDING FOR CHAMPIONSHIPS/EVENTS

The documents and/or information published by World Triathlon linked to the selection of host Organisers of all World Triathlon events shall be respected. The cities wishing to organise these World Triathlon events shall refrain from approaching another constituent, or a third authority, with a view to obtaining any financial or political support inconsistent with the provisions of such documents and/or information and/or the present Code.

F. RELATIONS WITH STATES and NOCs

1. National Federations and/or Organising Committees shall work to maintain harmonious relations with state authorities, in accordance with the principles of universality and political neutrality.
2. National Federations and/or Organising Committees are free to play a role in the public life of the states to which they belong. They may not, however, engage in any activity or follow any ideology inconsistent with the principles and rules defined in the Olympic Charter and set out in the present Code.
3. National Federations and/or Organising Committees shall endeavour to protect the environment on the occasion of any events they organise.

G. CONFIDENTIALITY

World Triathlon constituents shall not disclose information entrusted to them in confidence. Disclosure of other information shall not be for personal gain or benefit, nor be undertaken maliciously to damage the reputation of any person or organisation.

H. BREACHES OF THE CODE

Competent body

Any interested party shall bring any breach of this Code and its directions to the attention of the Tribunal, which may request an inquiry and impose a sanction foreseen under World Triathlon Tribunal Rules and Procedures.

I. IMPLEMENTATION

1. This Code of Ethics replaces the ITU Code of Ethics (edition 2016).
2. The World Triathlon headquarters shall see to it that the principles and rules of World Triathlon Codes, Rules and Regulations, the Olympic Charter, the IOC Ethics Code are applied.
3. The World Triathlon Headquarters shall inform the President of any breach of the present Code, with a view to possible referral to the Tribunal.

4. The Executive Board may, if it wishes, set out the provisions for the implementation of the present Code in a set of Implementing Provisions.

The principles listed above form the World Triathlon Code of Ethics which all World Triathlon constituents must comply with, as a condition of representing or participating in World Triathlon activities in any form and under any circumstances.

CONFLICT OF INTEREST POLICY

The appearance of impropriety can be as damaging as actual impropriety to World Triathlon's reputation. As a result, this policy is designed in such a way that compliance therewith will avoid, to the fullest practicable extent, both the perception and incidence of improper situations. A substantial appearance of a conflict of interest exists whenever others may reasonably infer from the given circumstances that a conflict exists.

A conflict of interest is defined as any personal or financial relationship that could influence or be perceived to influence objectivity when representing or conducting business or other dealings for or on behalf of World Triathlon. These relationships include the individual directly involved in the decision making, friends* or family members of the individual. Family members include a spouse, parent, child or spouse of a child, sibling, spouse of a sibling, cohabitating companion or any other individual with a significant familial or familial-like relationship.

Individuals can easily become biased, having unfair preferences, for many reasons. Biased decisions can unfairly benefit the individual decision maker, friends, family, business partners or others within their sphere of influence. Biased decisions are not limited to financial gain. Other examples include decisions that influence race day, social, prestige, position or power gain.

Upon election, re-election, acceptance or designation and more often if necessary, each Board member, member of a Committee or Commission thereof, other member of a body or group designated by any of the former to act on behalf of or advise World Triathlon (including but not limited to working groups and task forces), and senior Staff members ("World Triathlon officials") must disclose any known conflict by submitting the appropriate form to the Executive Board. Senior Staff members are department heads or anyone exercising substantially similar decision-making discretion.

* What is a friendship within the meaning of the code?

Unlike the relationship of an Official or Staff member with a family member, which can be objectively verified using the definition given in the law, a friendship is more subjective. In its most basic form, a friend can include a "range of relationships, from the most intimate of life partners to neighbours, colleagues, acquaintances or business partners whom one sees only occasionally and with whom there is little emotional connection". For the Code to apply, there must be "a close connection, feeling of affection or special kinship" between the Official or Staff member and that person. If the relationship is close enough that it is reasonable to question an Official's or Staff member's judgement in relation to their decision-making, then friendship exists.

Several indicators can help determine whether a person is a friend within the meaning of the Code. These indicators include:

1. the duration of the relationship and the context in which it developed;
2. the frequency of interactions;
3. the exchange of personal communications;
4. the sharing of meals or gifts in a personal setting;
5. the mutual display of trust, respect, affection, or admiration;
6. the perception of the relationship by others within the same social or professional circles.

The personal and professional interactions between an Official or Staff member and a person (colleague, employee or member of a wide social circle) can become so intertwined that it is difficult to draw the line between the two. Consequently, this relationship can also be considered as friendship as it may reasonably impair the Official's or Staff member's judgement in the performance of his official duties or functions.

The Executive Board will determine whether a friendship exists on a case-by-case basis. You should consult the Executive Board or, if in doubt as to whether a person is considered a friend within the meaning of the Code, withdraw from a matter involving such a person.

A. Procedure

1. Any Official or Staff member with a conflict of interest:
 - a. must disclose the interest to the Executive Board, who shall have the authority to either:
 - (1) approve or disapprove the relationship;
 - (2) refer the matter to the Credentials Committee.
 - b. must not be present during or participate in any formal or informal discussions related to the relationship between World Triathlon and the person of concern unless and until notified by the Executive Board or the Credentials Committee; and
 - c. must not be present during any discussion and abstain from voting and from influencing the vote on any matter related to the person or concern.

The Executive Board shall disclose decisions taken under 1(a) or 1(b) above in the interest of transparency.

B. Enforcement

Any person who violates or condones a violation of this policy is subject to disciplinary measures provided for in the World Triathlon Rules and Procedures.

1. As to Staff members, sanction the individual in accordance with the Federation's standard employment practices.
2. This Conflict of Interest Policy replaces the Conflict of Interest Policy included in the ITU Code of Ethics (edition 2016).

CONFLICT OF INTEREST DISCLOSURE STATEMENT

1. Do you, a member of your family or any friends transact business with or provide services to World Triathlon, one of its Continental Confederations, one of its National Federations, an organiser of World Triathlon events, and/or a sponsor of World Triathlon?

Please list the relevant entities or persons below and describe the dealings. If none, please state "none".

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2. Are you or a member of your immediate family an officer, partner, director, trustee, owner (in the case of public companies, of at least 5% of total equity), beneficial owner, consultant or employee of any person or entity that does business with or provides services to World Triathlon, one of its Continental Confederations, one of its National Federations, an organiser of World Triathlon events, and/or a sponsor of World Triathlon?

Please list the relevant entities or persons below and describe the dealings. If none, please state "none".

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3. Is there any other relationship or matter not disclosed above that might compromise or be perceived to compromise your obligations to the World Triathlon or its Continental Confederations, National Federations, competitors, owners, organisers, officials and/or sponsors?

If none, please state "none".

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4. In addition to the items listed above, do you agree to disclose any new conflicts of interest, or potential conflicts of interest, at the time of discussion or making decisions on behalf of World Triathlon?

(Circle YES or NO)

I have read and understood the World Triathlon Conflict of Interest Policy and certify that the answers to the questions above are complete and fully reflect any conflicts of interest as defined in this policy. I understand that this document must be submitted annually to the Secretary General and that I have

a responsibility to update it as often as necessary in the interim should my circumstances change. Refusal to provide the requested information, failure to timely update such information or provision of incomplete information is a violation of the policy and may result in removal as Official from the Executive Board, Committee, Commission or other relevant body including but not limited to working groups or task forces or employment.